

INTA Practice Guides Report

Trademark Enforcement Guide

Canada

SINGLE JURISDICTION REPORT

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I. Pre-filing Requirements/Demand Letters — A. Pre-filing Requirements/Demand Letters

- Although it is not mandatory to send a demand letter before instituting proceedings in this jurisdiction, it is common to send such a letter.
- Although it is not mandatory to attempt to settle with the other party before instituting proceedings in this jurisdiction, it is commonly done.
- It is neither mandatory nor common to engage in mediation or other alternative dispute resolution proceeding with the other party before instituting infringement proceedings in this jurisdiction.
- Before initiating an infringement proceeding, a party may take the following actions:
Currently, no steps are required to be taken prior to commencing an infringement proceeding. However, the recent announcement of a new "Intellectual Property Strategy" from the government of Canada refers to a possible new rule that "Use will also be required to enforce a trademark within the first three years after registration." This requirement purports to be a means of addressing "trademark squatting," which is seen by many as a risk of recent changes to the Trademarks Act that will permit registration of "proposed use" trademarks. As of the date of this update, the government has not provided any details on how this rule will be interpreted or implemented.
- The name for such a letter is: "demand letter" or "cease and desist letter."
- Such a letter should be sent at the following time: immediately upon learning of the complained-of conduct.
- Such a letter can be sent by: the owner of the mark; a licensee; an attorney for the owner of the mark (This is the preferable option.); an attorney for the licensee of the mark.
- There are no rules/customary practices applicable to such letters.
- With regard to the form or content of the letter, the following details are commonly included: identification of claimant; details of alleged rights infringed; identification of objecting party's first use dates; identification of any trademark registrations owned by the objecting party; details of the alleged infringement; potential claims (other than infringement), e.g., damage claims or costs; time for response; threat of legal action; request for undertaking, including obligation to pay contractual penalty for future infringement; request for summary of sales, revenues and/or profits derived from the use of the allegedly infringing mark; request for identification of customers and/or suppliers of products bearing the allegedly infringing mark.
- The benefits of sending a demand letter before initiating infringement proceedings rather than immediately initiating proceedings without sending a demand letter include: avoidance of penalties or cost awards; may help ascertain that infringement was inadvertent; may help ascertain that alleged infringer is impecunious and not

worth suing; may help ascertain whether alleged infringer has meritorious defenses; results may be achieved more quickly and at lower cost; may be viewed favorably in litigation by decision maker; may lead to negotiations and avoid the need to commence proceedings.

- The potential consequences of sending such a letter include: provides grounds for an action for declaration of invalidity or non-infringement; the possibility of the recipient's initiating infringement proceedings based on alleged prior rights; destruction of evidence; adverse publicity and/or adverse social media response; loss of the element of surprise, giving infringer time and opportunity to prepare a defense; the potential for the defendant to initiate a claim pursuant to Section 7(a) of the Trademarks Act, namely, making false or misleading statements tending to discredit the goods or services of a competitor, depending on who receives the letter.

- Factors to consider if a demand letter is sent and proceedings for infringement are not initiated include: the claim may be barred by time limits or statute of limitations; the claim may be barred by delay or acquiescence; loss of credibility in enforcement actions.

II. Claim for Infringement of a Registered Trademark — A. Claim for Infringement of a Registered Trademark

- There is more than one court system or administrative body that has jurisdiction over claims for infringement of a registered trademark (see below).
- The court system or administrative body that most frequently hears claims for infringement of a registered trademark is: the Federal Court of Canada.
- The other court system or administrative body that can also hear claims for infringement of a registered trademark is: the Provincial Courts.
- The following factors determine which court or administrative body can hear a case: place of alleged infringement; place where alleged damage occurred; residence of plaintiff; residence of defendant; value of the claim (For relatively low-value claims brought before the Provincial Courts, Small Claims Court may be the appropriate forum.); nature of the remedies sought; nature of the claim (The Federal Court does not have inherent jurisdiction to hear matters of tort and contract, although it may hear cases based on Federal statutes.).
- The following parties have standing/authority to institute proceedings for infringement of a registered trademark: the registered proprietor of a mark; an exclusive licensee (the owner/registered proprietor must join in the proceedings); an exclusive licensee (the owner/registered proprietor need not join in the proceedings); a non-exclusive licensee (the owner/registered proprietor must join in the proceedings); a non-exclusive licensee (the owner/registered proprietor need not join in the proceedings). The statutory presumption is that the licensee seeking to enforce the trademark has the option of whether to add the licensor to the proceedings, although this presumption can be set aside or varied in a licensing arrangement.
- If there is more than one registered proprietor/owner, they must all join in instituting the proceedings. Not applicable. In Canada, it is not possible for there to be more than one registered owner/proprietor of a trademark registration.
- Trademark infringement proceedings are decided by a judge with no jury. In the Federal Court, juries are not available for trademark proceedings. If an action is brought in the Provincial Court, a jury is available at the election of the plaintiff or the defendant. The court does, however, have discretion to order that the case proceed by way of judge alone under certain circumstances if any party brings a motion to that

effect. For example, such circumstances have included: if the case is particularly complex, if it involves primarily a question of law, or where adverse publicity makes an "impartial jury" practically impossible, among other circumstances. Each case will be decided on its own facts, however, and there is no "hard and fast" rule as to when a jury is inappropriate. As a matter of practice, juries are very rare in trademark cases.

- The time limit for initiating trademark infringement proceedings is: It depends on the province where the infringement took place. Most commonly, the limitation period of two years (i.e., Ontario, Québec, Alberta) governs.
- Once infringement proceedings are initiated, the stages of the proceedings include: filing of claim (including presentation of facts and legal arguments); filing of reply/defense to claim; filing of counterclaim; filing of evidence; mediation; discovery; expert discovery; dispositive motions; preliminary motions (to dismiss, for preliminary injunction or temporary restraining order); filing of briefs/written arguments; oral hearing; oral testimony/examination of witness; trial; judgment/decision; hearing to determine appropriate remedies; damages (or other financial relief) assessment.
- The average amount of time from the instituting of infringement proceedings through trial/final hearing is: more than two years. However, the recent announcement of a new "Intellectual Property Strategy" from the government of Canada included a statement that "IP rights' owners and users will benefit from more efficient and less costly IP dispute resolution and copyright tariff setting at the Federal Court and Copyright Board of Canada." As of the date of this update, the government has not provided any details on how this statement will be interpreted or implemented.
- The average amount of time from the end of the trial/final hearing to the issuance of judgment is: between six months and one year.

III. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off — A. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off

- Unregistered trademarks are protected under the following laws: common law of unfair competition; common law of passing off; trademark statute.
- The following parties have standing/authority to institute proceedings for infringement of an unregistered trademark: the owner of the unregistered right; an exclusive licensee (the owner of the unregistered right must join in the proceedings); an exclusive licensee (the owner of the unregistered right need not join in the proceedings); a non-exclusive licensee (the owner of the unregistered right must join in the proceedings); a non-exclusive licensee (the owner of the unregistered right need not join in the proceedings). As noted above, the statutory presumption is that the licensee seeking to enforce the trademark has the option of whether to add the licensor to the proceedings, although this presumption can be set aside or varied in a licensing arrangement.
- If there is more than one owner of an unregistered trademark, they must all join in instituting the proceedings. Not applicable. In Canada, it is not possible for there to be more than one registered owner/proprietor of a trademark.
- It is possible to institute a single proceeding for both registered trademark infringement (under the trademark law) and unregistered trademark infringement (under the law(s) listed above).

IV. Civil Enforcement-- Emergency Measures — A. Ex Parte Injunctions

- Ex parte injunctions are available to claimants seeking emergency relief.

- When applying for an ex parte injunction, it is not necessary to institute infringement proceedings at the same time.
- The types of ex parte injunction available include: prohibitory (to prohibit the defendant from performing certain acts) (A prohibitory injunction is the more common form of injunction granted, as compared to mandatory.); mandatory (to require the defendant to perform certain acts) (A mandatory injunction often is more difficult to obtain (and rarely granted)).
- There is no specified statutory or court-determined deadline for seeking an ex parte injunction; however, the plaintiff must not delay in seeking relief or availability of injunction, or the opportunity could be lost.
- A delay in applying for an ex parte injunction after becoming aware of the alleged infringing activities can prevent the applicant from obtaining the desired relief under the following circumstances: Although this is often a fact-specific determination, generally, if there is no reasonable excuse for delay, it can be an impediment to obtaining an injunction, as the delay prejudices the defendant.
- The purpose of an ex parte injunction is: to restrain further infringing activities until trial or a further hearing; to prevent the consequences of an infringement or violation; to obtain or preserve evidence; to ensure the effectiveness of the eventual remedy; to preserve the status quo; to prevent irreparable injury.
- The strategic benefits of obtaining an ex parte injunction include: it may put an end to the infringement and litigation quickly; it may save costs; putting the defendant at a strategic disadvantage at the beginning of the case; obtaining or preserving evidence; ensuring the availability of the requested remedy; getting an assessment of the merits by the court; reducing potential damage caused by infringement.
- The risks of seeking an ex parte injunction (if it is not granted) are: increased costs of the proceedings; early disclosure of plaintiff's case; early adverse determination.
- An ex parte injunction remains in place: for the following period of time: in Provincial Court in Ontario, 10 days from the date of entry; in Federal Court, 14 days.
- The defendant is notified of the grant of an ex parte injunction: by the plaintiff.
- The plaintiff must notify the defendant within the following time frame: 10 days in Provincial Court in Ontario (unless further leave is granted); 14 days in Federal Court (unless further leave is granted).
- The procedure for applying for an ex parte injunction includes the following: motion; supporting memorandum/points and authorities of law; supporting affidavits or declarations; supporting documentary evidence; supporting witness testimony; hearing; order; posting bond, cross-undertaking or other security.
- The amount of the bond or cross-undertaking is determined based on: the potential damage/losses to the defendant caused by an improvidently entered injunction.
- The factors considered in the granting of an ex parte injunction are: inadequacy of damages as a remedy; balance of convenience or hardships; i.e., consideration of the hardship to each side arising from the grant and from the denial of the injunction; whether the status quo should be preserved; the public interest favors entry of the injunction; urgency; timeliness with which plaintiff sought the injunction.
- The following forms of evidence are admissible in support of an ex parte injunction application: written witness statements; affidavits.
- If the court later finds that the ex parte injunction was granted in error, the applicant will be required to: compensate the defendant for damages suffered from the injunction; compensate the defendant pursuant to a cross-undertaking.
- The cost of obtaining an ex parte injunction, including attorney fees and court costs (but not including the cost of a bond), is approximately: between USD 50,000 and 100,000.

- The costs of an ex parte injunction are recoverable as follows: Costs are recoverable at the court's discretion, based on the following factors:(a) the result of the proceeding;(b) the amounts claimed and the amounts recovered;(c) the importance and complexity of the issues;(d) the apportionment of liability;(e) any written offer to settle;(f) any offer to contribute made under Rule 421;(g) the amount of work;(h) whether the public interest in having the proceeding litigated justifies a particular award of costs;(i) any conduct of a party that tended to shorten or unnecessarily lengthen the duration of the proceeding;(j) the failure by a party to admit anything that should have been admitted or to serve a request to admit;(k) whether any step in the proceeding was (i) improper, vexatious or unnecessary, or (ii) taken through negligence, mistake or excessive caution;(l) whether more than one set of costs should be allowed, where two or more parties were represented by different solicitors or were represented by the same solicitor but separated their defense unnecessarily;(m) whether two or more parties, represented by the same solicitor, initiated separate proceedings unnecessarily;(n) whether a party who was successful in an action exaggerated a claim, including a counterclaim or third-party claim, to avoid the operation of Rules 292 to 299;(o) whether the expense required to have an expert witness give evidence was justified given (i) the nature of the litigation, its public significance and any need to clarify the law, (ii) the number, complexity or technical nature of the issues in dispute, or (iii) the amount in dispute in the proceeding; and(p) any other matter that it considers relevant.
- On average, an ex parte injunction is issued within the following time period (counting from the filing of the application to the issuance of the injunction): between 2 and 10 days.
- In an ex parte proceeding, a party may request an order to enter the premises of another party and to search for property/documents/items that may become evidence (i.e., a “search order” or “search and seizure order”) (referred to as an Anton Piller Order).
- The following party or parties will be present at the inspection: the marshal, sheriff or other law enforcement officer; a private investigator (prudent, but not required, to be present to record the conduct of the investigation); the party's/parties' legal representative(s); an independent supervising solicitor to act as an officer of the court.
- In an ex parte proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a “freezing order” or “freezing injunction”) (referred to as a Mareva Injunction).
- The grant of an ex parte injunction can be appealed.
- Appeal of a decision granting an ex parte injunction can be expedited.
- The denial of an ex parte injunction can be appealed.
- Appeal of a decision denying an ex parte injunction can be expedited.

IV. Civil Enforcement-- Emergency Measures — B. Interim Inter Partes Injunctions

- Interim inter partes injunctions are available to claimants seeking emergency relief.
- When applying for an interim inter partes injunction, it is not necessary to institute infringement proceedings at the same time.
- The types of interim inter partes injunction available include:prohibitory (to prohibit the defendant from performing certain acts);mandatory (to require the defendant to perform certain acts).
- The deadline for seeking an interim inter partes injunction is: There is no deadline mandated by statute; however, the court will not look favorably on a party waiting too

- long to bring a motion after discovering the activity, and proximity to the trial may be a factor in the balance of convenience element of the test for granting an injunction.
- A delay in applying for an interim inter partes injunction can prevent the applicant from obtaining the desired relief under the following circumstances: If the court determines that the delay is unreasonable, it may decide not to grant the relief requested.
 - The purpose of an interim inter partes injunction is: to restrain further infringing activities until trial or a further hearing; to prevent the consequences of an infringement or violation; to obtain or preserve evidence; to ensure the effectiveness of the eventual remedy; to preserve the status quo; to prevent irreparable injury.
 - The strategic benefits of obtaining an interim inter partes injunction include: it may put an end to the infringement and litigation quickly; it may save costs; obtaining or preserving evidence.
 - The risks of seeking an interim inter partes injunction (if it is not granted) are: increased costs of the proceedings; early disclosure of plaintiff's case; prejudicial adverse determination.
 - An interim inter partes injunction remains in place: until a decision is made in the main proceedings. until further order by the court. for a fixed period (depending on the case).
 - The procedure for applying for an interim inter partes injunction includes the following: motion, with notice to all parties; supporting memorandum/points and authorities of law; supporting affidavits or declarations; supporting documentary evidence; responsive memorandum/points and authorities of law; responsive affidavits or declarations; witness testimony; hearing; order; posting bond, cross-undertaking or other security.
 - The amount of the bond or cross-undertaking is determined based on: the potential damage/losses to the defendant caused by an improvidently entered injunction; the defendant's costs in defending the injunction application.
 - The factors considered in the granting of an interim inter partes injunction are: inadequacy of damages as a remedy; balance of convenience or hardships; i.e., consideration of the hardship to each side arising from the grant and from the denial of the injunction; whether the status quo should be preserved; likelihood of success on the merits; urgency; timeliness with which plaintiff sought the injunction.
 - The following forms of evidence are admissible in support of an interim inter partes injunction application: written witness statements; documents; affidavits.
 - If the court later finds that the interim inter partes injunction was granted in error, the applicant will be required to: compensate the defendant for damages suffered from the injunction; compensate the defendant pursuant to a cross-undertaking; forfeit its bond, which is paid to the court; forfeit its bond, which is paid to the defendant.
 - The cost of obtaining an interim inter partes injunction, including attorney fees and court costs (but excluding the cost of a bond), is approximately: between USD 50,000 and 100,000.
 - The costs of an inter partes injunction are recoverable as follows: Costs are recoverable and may be ordered by the court. Factors the court will consider are as follows: (a) the result of the proceeding; (b) the amounts claimed and the amounts recovered; (c) the importance and complexity of the issues; (d) the apportionment of liability; (e) any written offer to settle; (f) any offer to contribute made under Rule 421; (g) the amount of work; (h) whether the public interest in having the proceeding litigated justifies a particular award of costs; (i) any conduct of a party that tended to shorten or unnecessarily lengthen the duration of the proceeding; (j) the failure by a party to admit anything that should have been admitted or to serve a request to

admit;(k) whether any step in the proceeding was (i) improper, vexatious or unnecessary, or (ii) taken through negligence, mistake or excessive caution;(l) whether more than one set of costs should be allowed, where two or more parties were represented by different solicitors or were represented by the same solicitor but separated their defense unnecessarily;(m) whether two or more parties, represented by the same solicitor, initiated separate proceedings unnecessarily;(n) whether a party who was successful in an action exaggerated a claim, including a counterclaim or third-party claim, to avoid the operation of Rules 292 to 299;(o) whether the expense required to have an expert witness give evidence was justified given (i) the nature of the litigation, its public significance and any need to clarify the law, (ii) the number, complexity or technical nature of the issues in dispute, or (iii) the amount in dispute in the proceeding; and(p) any other matter that it considers relevant.

- It takes approximately the following length of time to obtain an interim inter partes injunction (counting from the filing of the application to the issuance of the injunction): between 10 and 30 days.
- In an interim inter partes proceeding, a party may request an order to enter the premises of another party to search for property/documents/items that may become evidence (i.e., a “search order” or “search and seizure order”). The search and seizure order in Canada (referred to as an Anton Pillar Order) is usually granted on an ex parte basis as there is often a concern that the evidence will be destroyed by the other party.
- The following party or parties will be present at the inspection: the party's/parties' legal representative(s) (An independent "supervising solicitor" should be present to oversee the search. The defendant or a responsible employee for the defendant should also be present.).
- In an interim inter partes proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a “freezing order” or “freezing injunction”), referred to as a Mareva Injunction.
- The determination on an application for an interim inter partes injunction can be made into a final decision on the merits (i.e., an interim inter partes injunction can be made permanent).
- The hearing on an interim inter partes injunction cannot be consolidated with the trial or final determination on the proceeding.
- Witnesses must be identified in an interim inter partes injunction proceeding before the hearing.
- The grant of an interim inter partes injunction can always be appealed without waiting for final disposition of the case.
- Further appeal of the grant of an interim inter partes injunction is always possible without waiting for final disposition of the case.
- Appeal of a decision granting an interim inter partes injunction can be expedited.
- The denial of an interim inter partes injunction can always be appealed without waiting for final disposition of the case.
- Further appeal of the denial of an interim inter partes injunction is always possible without waiting for final disposition of the case.
- Appeal of a decision denying an interim inter partes injunction can be expedited.

IV. Civil Enforcement-- Emergency Measures — C. Standards for Obtaining Inter Partes and Ex Parte Injunctions

- The standard for obtaining an interim inter partes injunction differs from the standard for obtaining an ex parte injunction as follows: Ex parte injunctions carry a higher

burden on the party seeking the injunction; it must give full and complete disclosure of all the facts, since the adverse party has no opportunity to respond.

V. Early Resolution of Litigation — A. Interim Applications Available for Ending Proceedings Early

- A party can seek to end proceedings prior to trial or final determination by interim applications for: summary judgment (judgment as a matter of law when facts are undisputed); determination of preliminary issue by trial or hearing; striking out or dismissing a party's case on the pleadings; default judgment, where a case is undefended.

V. Early Resolution of Litigation — B. Summary Judgment

- A party can conclude proceedings early by obtaining summary judgment in the following circumstances: There is no genuine issue for trial.
- Summary judgment can be requested by the following parties: plaintiff; defendant; third party, if any.
- The applicant for summary judgment must: make an application to the court; file a written statement containing the appropriate facts, argument and legal support; file supporting documents or other evidence.
- A ruling on a motion for summary judgment may always be appealed.
- A summary judgment may be appealed on the following grounds: the court improperly resolved disputes about material facts; the court made an error of law.

V. Early Resolution of Litigation — C. Trial of Preliminary Issue

- Proceedings can be expedited through an early trial or hearing on a preliminary issue under the following circumstances: motion for summary judgment or summary trial; motion to strike all or part of a pleading.
- Trial or hearing of a preliminary issue can be requested by the following parties: plaintiff; defendant; third party, if any.
- The applicant for trial or hearing of a preliminary issue must: make an application to the court; file a memorandum containing the appropriate facts, arguments and legal support; file supporting witness affidavits or declarations of fact.
- For the court to grant a trial or hearing of a preliminary issue, the following conditions must be met: there is no genuine issue for trial, or a claim or defense has no reasonable chance of success.

VI. Evidence — A. Evidence

- The following forms of evidence can be relied upon in support of a claim in this jurisdiction's trademark infringement proceedings: documentary evidence (including samples/photos of allegedly infringing items); expert evidence (Guidance from the Supreme Court of Canada has cautioned against relying heavily on expert evidence as it relates to the question of confusion. The court tends to consider itself to be in as good a position as the relevant "casual consumer" to consider whether two marks are confusing without the need for expert evidence.); oral testimony; survey evidence.
- The following forms of evidence can be relied upon in defense of a claim in this jurisdiction's trademark infringement proceedings: documentary evidence; expert evidence (Guidance from the Supreme Court of Canada has cautioned against relying heavily on expert evidence as it relates to the question of confusion. The court tends to consider itself to be in as good a position as the relevant "casual consumer" to

consider whether two marks are confusing without the need for expert evidence.);oral testimony;survey evidence.

- A claimant must present or give notice of any evidence on which it will rely at the following time: Disclosure of the relevant documents must be provided during the discovery process. In addition, the parties must provide notice pursuant to the Evidence Act of their intention to rely on specific documents shortly before trial.
- A defendant must present or give notice of any evidence on which it will rely at the following time: Disclosure of the relevant documents must be provided during the discovery process. In addition, the parties must provide notice pursuant to the Evidence Act of their intention to rely on specific documents shortly before trial.
- A party to the proceedings may obtain information that is within the possession or control of another party to the proceedings:at the request of the tribunal;at the request of the party.

VII. Trial/Oral Hearing — A. Trial/Oral Hearing

- Evidence may be presented at the trial or oral hearing in the form of: written witness statements (including, e.g., affidavits, depositions, or statutory declarations); oral testimony of witnesses; deposition; documents; surveys; physical objects; expert testimony.
- It is possible to introduce surveys in evidence for the following issues: secondary meaning/acquired distinctiveness; whether a mark is famous or well known; likelihood of confusion; dilution; genericness; functionality. Guidance from the Supreme Court of Canada has cautioned against relying heavily on expert evidence as it relates to the question of confusion. The court tends to consider itself to be in as good as a position as the relevant "casual consumer" to consider whether two marks are confusing without the need for expert evidence.
- The use of survey evidence is subject to the following requirements: While they may be submitted, the courts generally heavily scrutinize surveys to review the manner in which they are conducted and to determine if they are truly required. Litigants are well advised to retain very experienced surveyors before preparing this kind of evidence.
- The length of an average trial or final hearing in a civil action for trademark infringement is: approximately two weeks, although this can vary significantly depending on the extent of the evidence and issues involved.
- The nature of the proceedings is:adversarial, i.e., the proceedings are driven by the parties and their representatives (e.g., the litigants control and present evidence) and the decision maker plays a relatively passive role.
- A trial or final hearing includes the following:opening statements by counsel for each party;plaintiff's case through examination of witnesses by plaintiff;defendant's case through examination of witnesses by defendant;plaintiff's rebuttal case;cross-examination of witnesses by parties is permitted;closing argument by counsel for each party.
- Witnesses are examined by:the lawyers.
- As part of trial preparation, the parties do the following:provide draft findings and conclusions if the proceeding is to be decided by a judge;provide a skeleton/outline of argument;provide stipulations of fact;stipulate to authenticity of documents;identify trial witnesses;consider possibility for settlement;attempt to mediate the dispute.

VIII. Judgment/Final Orders — A. Judgment/Final Orders

- It takes approximately the following amount of time for a decision to be handed down after trial or final hearing: This can vary significantly, and there is no set rule or

even an "average" timeline. Often, decisions can take from two to four months, but rarely more than six months. It is also possible for the decision to be rendered immediately "from the bench."

- The decision may be appealed within the following time frame: Generally, the appeal period is 30 days from the date of a final decision of the Federal Court. Interlocutory decisions must be appealed within 10 days.
- Appealing a decision is of right; no permission is needed.
- There is more than one court to which an initial appeal can be made; they are: the Federal Court of Appeal or Provincial appellate courts.
- The court that most frequently hears initial appeals is: the Federal Court of Appeal.
- The other court(s) that can also hear(s) initial appeals is: the Provincial appellate courts.
- The appeal court reviews: both the facts of the case and legal issues.
- Further appeal is possible to the following court: the Supreme Court of Canada, but only with leave.
- Further appeal is not granted as a matter of right; permission is required.

IX. Post-Judgment Matters — A. Post-Judgment Matters

- A defendant has the following length of time to comply with an order issued in a judgment: It depends entirely on the terms of the order. Judges typically will specify a time for compliance.
- A judgment may be enforced by way of the following proceeding(s): garnishment; writ of seizure and sale; contempt proceeding.

X. Costs of Litigation — A. General

- The types of costs that may be recovered by the prevailing party during/after legal proceedings include: attorney fees; court fees; expert fees; bond or security for costs; copying costs (for producing documents, in discovery, typically); court reporter fees (for depositions and hearings); witness fees (for third-party witnesses); costs incurred by a party or its witnesses (for travel, food, lodging or other expenses).
- A range for the all-inclusive cost of a typical action for trademark infringement from filing of the claim through trial is as follows: between USD 200,000 and 500,000. However, the recent announcement of a new "Intellectual Property Strategy" from the government of Canada included a statement that "IP rights' owners and users will benefit from more efficient and less costly IP dispute resolution and copyright tariff setting at the Federal Court and Copyright Board of Canada." As of the date of this update, the government has not provided any details on how this statement will be interpreted or implemented.
- The successful party in a trademark infringement claim can expect to recover a portion of the attorney fees incurred (as distinguished from damages awarded). See below.
- The average percentage of attorney fees incurred in a trademark infringement claim that a successful party can expect to recover is: 25 percent.
- Attorney fees are assessed using the following method(s): proof of attorney fees actually paid by the prevailing party; proof of attorney time expended, paid at rates specified by the court; a hearing; a fixed fee schedule.

X. Costs of Litigation — B. Security for Costs

- When initiating proceedings, a plaintiff may be required to provide security for any costs that may eventually be awarded against it.

- A defendant may be required to provide security for costs after proceedings are initiated.
- Application for security for costs is made via the following procedure: The party seeking security must bring a motion to the court.
- For the court to grant security for costs, the following conditions must be met: the claimant is resident outside the jurisdiction; there is reason to believe that the plaintiff will not be able to pay the defendant's costs if ordered to do so; the party against whom security is sought has an outstanding costs award against him or her.
- An application for security for costs can be made at the following stage of the proceedings: A motion for security for costs may be brought at any time before trial.
- In granting security for costs, the court may make the following orders: the amount of the security; the manner in which the security must be given; the time frame in which the security must be given.
- An order for security for costs may be appealed under the following circumstances: The payor may appeal the decision as of right and may show that it has the ability to pay costs awards or that security was improperly ordered.
- If security is ordered, it is customarily provided in the form of: bond/payment to the court.

XI. Remedies — A. Remedies

- The following monetary remedies are available for trademark infringement: accounting of defendant's profits and actual damages; punitive damages.
- Actual damages are assessed using the following methods: lost profits of plaintiff; damages to plaintiff; constructive license fee/reasonable royalty.
- Where both are available, a party can choose whether to receive damages or an accounting of profits.
- Determination of the type and amount of remedy is part of the trial on liability only under the following circumstances: The parties may agree to "bifurcate" proceedings and determine damages after liability is determined. Otherwise, the two issues are tried together.
- The following non-monetary remedies are available for trademark infringement: injunctions; delivery up of infringing labels, packaging or products; destruction; disposal; removal or obliteration; public dissemination of judgment; recall of infringing products; corrective advertising; identification of supplier; any relief that the court determines to be just under the circumstances.

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